



M/s. ARADHYA ELECTRICALS & ENTERPRISES Aradhya Tal Mohol At PO Kuranwadi Distt Solapur At PO Kuranwadi Solapur -413213 Solapur	KALPATARU POWER TRANSMISSION LIMITED 7th Floor, Kalpataru Synergy, Opp. Hotel Grand Hyatt, Santacruz (East) MUMBAI 400055 Telephone No :
Order Number : 2400109656 Date : 29.04.2022	Fax No
Quotation Ref. No. & Date :	Email :
Project Reference :	
GST. 27CXDPS1833F1ZG	GST No. 27AAACK8387R1ZJ

SERVICE ORDER / WORK ORDER

Sr No	Code	Description	Qty.	UOM	Rate	Value
10	ANKAI SP					
	16013:E	Elect of Switching Station Building SAC Code :	1	EA	28000.00	28,000.00
	30008:E	P&L of Reinforced Concrete SAC Code : 995421	3	M3	5100.00	15,300.00
	17001:E	Construction of Switching Station Buildg SAC Code :	1	EA	240000.00	240,000.00
	30014:E	Supply and spreading of gravel/ ballast SAC Code :	6	M3	1200.00	7,200.00
	30021:E	ExtraEarthworkinfillingatSWS,TSS SAC Code :	385	M3	385.00	148,225.00
	TMT_CBF	Cutting, Bending & fixing of TMT SAC Code : 995421	1.000	MT	7000.00	7,000.00
	30006A :E	M-10 CONCRETING IN ALL TYPES OF SOIL &SO SAC Code :	3	M3	5200.00	15,600.00
	1000827	Revetment RR Masonry SAC Code :	27	M3	4000.00	108,000.00
	107PLW220 GIS	Plaster work SAC Code : 9997	205	M2	200.00	41,000.00
	Activity Sub Total					610,325.00
20	Nagarsol SSP					
	16013:E	Elect of Switching Station Building SAC Code :	1	EA	28000.00	28,000.00
	30008:E	P&L of Reinforced Concrete SAC Code : 995421	7	M3	5100.00	35,700.00
	17001:E	Construction of Switching Station Buildg SAC Code :	1	EA	240000.00	240,000.00
	30014:E	Supply and spreading of gravel/ ballast SAC Code :	6	M3	1200.00	7,200.00
	30021:E	ExtraEarthworkinfillingatSWS,TSS SAC Code :	101	M3	385.00	38,885.00
	TMT_CBF	Cutting, Bending & fixing of TMT SAC Code : 995421	2.500	MT	7000.00	17,500.00
	30006A :E	M-10 CONCRETING IN ALL TYPES OF SOIL &SO SAC Code :	10	M3	5200.00	52,000.00
	1000827	Revetment RR Masonry SAC Code :	96	M3	4000.00	384,000.00
	107PLW220 GIS	Plaster work SAC Code : 9997	45	M2	200.00	9,000.00
RL019PSA3 5	Earthwork in excavation SAC Code :	165	M3	150.00	24,750.00	
	Activity Sub Total					837,035.00
Total of Price						1,447,360.00
Total Taxes						173,683.20
Grand Total						1,621,043.20
Sixteen Lakh Twenty One Thousand Fortv Three Rupees Twentv Paise						

For Kalpataru Power Transmission Ltd.

GENERAL TERMS & CONDITIONS

1. Scope of Work:

Execution of Civil & Electrical work of Switching Post (SP/SSP) at EPC-04 Railway Project as per the Bill of Quantities Provided herewith in PO/WO. The scope of work include Execution of Civil & Electrical work at the locations advised by KPTL/CORE in accordance to the layout drawing provided by KPTL/CORE and as per detailed specifications provided in the main contract entered in between CORE and KPTL.

The scope of works includes but not limited to the followings;

- a) Mobilizing site with requisite manpower, plant & equipment, tools & tackles, materials, machineries etc. including consumables items and other finishes as per requirement of Specifications.
- b) Arrangement of raw materials, facilitating Testing, Liasioning with concerned authorities, Source Approval, EC Clearance if applicable etc. are in sub-contractors scope.
- c) Loading, Unloading, transportation, all lead, lift, safe storage, watch & ward on round the clock basis in sub-contractors scope.
- d) Cement and reinforcement will be free issue material on reconciliation basis. Any other material issued to contractor except free issue item will be debited back to back.
- e) Electrification work of SP/SSP is including Labour & material cost i.e Ceiling Fan, Exhaust fan, Tube, LED Bulb , copper wire, conduit pipe etc. as per client requirement.
- f) Earth filling work is including Royalty charges .
- g) Providing services during defect liability period and completion of all contractual obligations including demobilizing and clearing the work site, providing reconciliation of materials, royalty reconciliation till issuance of Taking Over Certificate by CORE (if applicable).
- h) All the works as described in Bill of Quantity (BoQ) of PO/WO, are to be executed as per approved quality by CORE/KPTL. Further, all items to be executed as per the relevant specifications applicable as per the terms of the main Contract with the Employer (i.e. CORE) including railway manuals, latest specifications and guidelines as applicable to the present scope of work.

2. Material, Machinery & Manpower: All materials, machineries, Tools and Tackles, Laborers, temporary establishment etc. required for execution of works are included in Sub-Contractor rates. The materials to be used in the project has to be from approved brand/source and to be procured only after written consent from KPTL representative.

- a) If any material used beyond the consumption/ allowable limits, KPTL will recover the cost of same as per issue Rate/ market (whichever is higher) rates plus 10% towards overheads, from the Sub contractor's running bill.

3. Storage/Transportation: Scope of storage, Loading, Un-Loading and Transportation of manpower, machinery, materials etc. are included in Sub-contractor's rates.

4. Sub-Contract Price and unit Rate:

The Sub-Contract Price for completion of Scope of Work is as mentioned in PO. This being a re-measurable contract the amounts paid shall be based on agreed unit rates as given in the BoQ and quantities of work performed and certified by KPTL representative. Except as otherwise provided under this Work Order, the unit rates shall be fixed, firm and binding till the completion of the works.

5. Price variation (PV):

The amounts payable to the Sub-Contractor as mentioned in BOQ are firm and fixed till completion of the subcontracted work. No PV is applicable for this work Order.

6. Definitions:

- (a) The EPC contract has been awarded by CORE (referred as Employer) to Kalpataru Power Transmission Limited (referred as 'KPTL' or the 'Company'). The Project Manager of the Company will be referred as the Company's Engineer or Engineer.
- (b) All definition as per the main contract between CORE and Kalpataru Power Transmission Limited (KPTL) will be applicable to this contract also except for the changes applicable to the context of contract and Sub-contractor.

7. Technical Specification:

All attached items in BOQ are to be executed as per approved quality by CORE/KPTL. Further, all items to be executed will be as per the Specifications provided in the main Contract Conditions with CORE including railway manuals as applicable. In case, specification for any item necessary for completion of building is not available in Specifications/Main Contract, the CORE Standard and Specifications for material and works/ any other relevant codes shall be followed as decided by KPTL Authorized representative. In case of any contradicting instructions in the specifications, KPTL decisions shall be final and binding to the Sub-contractor without appeal.

8. Progress of Work and Completion Schedule:

1. The Sub-Contractor should mobilize and commence the works within 1 week /as advised by KPTL and should complete the works as per date of commencement. The date of commencement shall be informed by KPTL representative once the drawings are approved and layout finalized by CORE.
 2. Contractor will mobilize the required resources including but not limited to the minimum equipment and manpower, Engineers and staff and Technical Representatives in coordination with KPTL to deliver the works in said timelines.
- a) The Sub-Contract Works are to be carried out diligently in accordance with the program in such order, manner, and time as KPTL may

reasonably direct so as to ensure completion of the Works or any portion thereof by the completion date.

b) Sub-Contractor hereby agree that time is of the essence. Therefore, The Sub-Contract Works are to be completed within the Sub-Contract Period .

c) The Sub-Contractor has to submit detailed Work Completion program within 30 days from the date of Work order and the rate of progress will be monitored on fortnightly basis or as per requirement of KPTL. Any shortfall/failure to achieve the required progress will be notified to the Sub-Contractor and Sub-Contractor shall submit a recovery plan within 15 Days for acceptance by KPTL and adhere to the same.

d) In case the subcontractor progress /performance is not as per program /expectation the contract can be terminated and balance works can be done through other agency or KPTL on risk and cost of the Subcontractor and Subcontractor would not have any claim on this account.

9. Taxes: Unit Price are inclusive of all applicable taxes, Duties, royalty etc. except GST, which is separately payable. Vendor has to submit the GST Challans for previous bill along with the next bill for processing of RA Bill.

If any amount of credit, refund or any other benefit is denied or delayed to the KPTL or any penal charge is imposed on KPTL due to any non-compliance by the Sub-Contractor (including but not limited to the failure to upload or incorrect disclosure of details on the GSTN portal or delay/ failure to deposit tax or due to non-furnishing or furnishing of incorrect/ incomplete documents by the Sub-Contractor), wrong determination of nature of supply, the Sub-Contractor shall be liable to reimburse/compensate the loss and damage which accrues to the KPTL on the aforesaid account. Alternatively, KPTL shall be entitled to withhold the payment of all the subsequent bills issued by the Sub-Contractor

10. Royalty / Seigniorage Charges: Unit Rates are inclusive of all royalty, seigniorage and mineral charges etc. Any liaison etc. required for the works including statutory approvals, environmental clearances etc. from concerned authorities shall be under Sub-contractors responsibility. Sub-contractor has to submit the challans / receipts (In original) for previous bills along with the next bill for processing of RA Bill, failing which the corresponding royalty amount plus additional 10% payment shall be put on hold for non-submission of royalty challans. This hold amount will be released only after submission of supporting documents to the satisfaction of KPTL Engineer, without any interest. Withholding such amount from the Sub-Contractor's bill shall not relieve the Sub-contractor from complying with the any of applicable rules under Law. Any complication arising due to such non-compliances shall be attributed solely to the Sub-contractor and KPTL shall not be responsible in any case what-so-ever.

All the Royalty is to be paid in the name of KPTL. In exceptional case if the royalty for any material is required to be paid to Government by Company (KPTL), the same will be arranged by the contractor and Payment may be made by the company to the Government as per the demand note of the Government, which shall be recovered from the contractor subsequent bill.

11. Mode of Measurement & Stage of Payment: Measurement of quantities will be the quantities as executed by Sub-contractor measured by KPTL Engineer and approved by KPTL Project Manager. The Quantities will be reconciled with final approved as built drawings and final payment will be made/adjusted/recovered accordingly.

12. Terms of Payment:

a. In may be noted that CORE have awarded the contract to the KPTL on EPC basis and CORE will make payment to KPTL as per payment schedule of the main contract. Hence, the contractor is encouraged to execute the work according to the payment stages as given in schedule of main contract and as per the directions of KPTL.

b. Invoices shall be raised on monthly basis. Payment shall be released as follows:

i) 95% of due payments will be released within 30 days after successful certification of executed quantity by KPTL Project Manager.

ii) 5% Security Deposit will be deducted against each bill, which shall be released after Completion of the Defect Liability Period and submission of all related documents towards statutory compliances like royalty challans, Reconciliation, Warranty guarantee certificates, environmental clearances etc. as applicable.

c. The following deductions shall be made while certifying the amount payable against each bill:

Any main contract debits as applicable for the present Contract;

i) TDS, as applicable

ii) Any other amount payable/deductible in respect of any breach or allowed under the Contract;

iii) Any deduction made by Owner pertaining to the present Scope of Work.

d. The Sub-Contractor shall submit to KPTL a written statement showing the sum that the Sub-Contractor considers to be due to the Sub-Contractor calculated as above at the Due Date.

e. The Application for Payment/Invoice must specify the basis on which the Sub-Contractor has calculated the sum due and include such details as KPTL may reasonably require to facilitate the calculation and checking by KPTL of the value of Sub-Contract Works executed and of the sum which the Sub-Contractor considers to be so due.

f. The Sub-contractor shall submit the invoice complete in all respect including proof of GST deposition of the last bill paid, PF Challans, ESI Payments, reconciliation of free issue materials (If any), DPR/RFI signed by the Employer (as applicable) and any other documents as mentioned elsewhere in this Work order/LOI/required by KPTL.

g. Each instalment of the Sub-Contract Price shall become due to the Sub-Contractor thirty days (the "Due Date") following the relevant certification for payment. No interest shall be payable for any delays in payment for any reason whatsoever.

h. The sub-contractor shall provide valid invoice as per GST rules so as to enable KPTL to avail ITC as per prevailing rules. In case ITC is denied because of sub-contractor's failure, the same shall be recovered from the sub-contractor. ITC as applicable shall be reimbursed on

submission of documentary proof of deposit with Govt. and other required documents. The sub-contractor shall assist KPTL in all documentation required for computing GST as and when required.

i. If the sub-contractor is not registered under GST or if it fails to charge GST in the monthly bills, KPTL shall not accept any claim of reimbursement of GST at a later stage and liability of GST will have to be borne by the sub-contractor alone.

13. Quality: Quality of works shall be as per the specifications of KPTL main contract with client (CORE) on back-to-back basis and to the full satisfaction of KPTL/CORE.

14. Safety: Sub-Contractor should arrange for own PPE gear for his workmen and should also follow safety guidelines of KPTL and Client (CORE), in view of the failure to provide PPE gear, KPTL shall provide and the costs for the same shall be recovered from Sub-contractors RA bill. It shall be the contractor's responsibility to take adequate precautions regarding safety of man and machineries including Licenses, Vehicle fitness report and other required as per Safety guidelines of KPTL/CORE and applicable Rules/Laws. Mandatory PPE for the Projects as per KPTL HSE Guidelines is Hard Hats, High Reflective Vest and Safety Boots. Any penalty levied by Employer on KPTL due to safety lapses/violation of the sub-contractor shall be recovered from the dues of the sub-contractor.

15. Quantity Variation: KPTL reserves its right to vary quantities in Sub-Contractor scope to any extent. Unit rates will remain fixed and firm for a variation of (+/-) 25% of given quantities in the BoQ. In case of unsatisfactory performance of the Sub-Contractor, KPTL reserves the right to short close the work order at any particular time without any compensation to the sub-contractor on any account whatsoever.

16. Statutory Compliances:

a. The Sub-Contractor shall, in performance of its obligations under the Contract and in carrying out of the scope of works, ascertain and comply with applicable laws. The Sub-Contractor shall indemnify KPTL, its affiliates and its respective directors, officers, employees and agents against losses, claims, costs, compensation claimed before a court of competent jurisdiction and liabilities, including any penalty and sanctions payable to any person, together with any legal expenses incurred in connection therewith, to the extent arising out of any act of omission or commission of the Sub-Contractor, any Sub-Supplier or their respective agents or employees to comply with Applicable Laws, including but not being limited to Contract Labour regulation (Prohibition and Abolition) Act, Employee State Insurance Act, Provident Fund Act, Minimum Wages Act, etc, in the performance of its obligations under the Contract.

b. If the Sub-Contractor finds any divergence between Applicable Laws and the Performance parameters/ Guarantees or the Technical Specifications (other than Change in Law) they shall immediately give to the other Party written notice specifying the divergence. The Sub-Contractor shall promptly upon becoming aware of the same, inform the KPTL in writing of its proposed amendment for removing the divergence, and with the KPTL's prior written consent the Sub-Contractor shall entirely at their own cost and expense complete the Works in accordance with the amendment.

c. For allotted / assigned job work, Sub-Contractor shall be solely responsible for taking all necessary safety and health precautions including social distancing and other hygiene aspects for all labours engaged directly/ indirectly by him. Sub-Contractor shall be responsible for cover of all labours engaged directly or indirectly by him under ESI & PF Acts and all other Applicable Laws and proof of compliance with the provisions of such Applicable Laws shall be produced before commencing the work. Further the Sub-Contractor shall also be liable to submit all documentary proofs of making compliance with the requirements of Applicable Laws, more particularly with respect to Labour Laws and /or Industrial Laws and the KPTL shall only process the payments of the SUB-Contractor, upon receipt and verification of such documents and certifying compliance with all Applicable Laws.

d. Sub-Contractor shall be solely responsible for payment of any compensation towards its labours appointed directly or indirectly, which may arise due an accident of fatal or non-fatal by nature or on account of any act of omission or commission during execution of the assigned job under the Contract.

e. Sub-Contractor shall be responsible for practicing and following all safety norms and standards prescribed by KPTL/ under Applicable laws time to time, upon breaching of which, KPTL may terminate above said Purchase Order/ Contract or may impose penalty for the same which shall be recovered from any pending invoices / bills due to the Sub-Contractor. In case of the termination of Purchase Order / Contract, KPTL shall not be liable to pay any compensation towards cancellation of the job / work assigned to the Sub-Contractor whatsoever under the Contract/ PO as the case may be.

f. KPTL reserves its right to visit Factory/ establishment / site of Sub-Contractor before or during execution of PO/ Work order at its sole discretion to ensure due compliances of Applicable Laws by Sub-Contractor.

g. The Sub-Contractor shall obtain and submit copies of following registration certificates and documents:

- a) Registration under GST
- b) PAN Card issued by Income Tax authorities.
- c) Registration with PF, ESI & Other labour law authorities.
- e) Insurance policies including workmen compensation policy
- f) Labor License is in KPTL Scope.

- h) Copy of the Attendance Register and Register of Wages
- i) Permission required for extraction of soil/earth/sand or any other material from concerned authorities
- j) Any other license(s)/registration(s) as may be required by KPTL

h. In case KPTL is made liable to pay any wages, compensation etc. due to non-fulfillment of the above obligations by the sub-contractor, all such payments shall be recovered from the sub-contractor bills/ Security Deposit. The sub-contractor will also be liable for all costs and expenses incurred by the company, if the company is made/forced to deal with any Labour Dispute arising out of contractual labour or staff force.

17. Insurance: Any insurance required for sub-contractor for his resources (machinery, manpower etc.) is in the scope of sub-contractor and shall be included in his rates.

18. Warranties, Representations And Covenants

Sub-Contractor hereby assures, represent, warrant and covenant with the KPTL that;

- (a) Sub-Contractor has the full right, power and authority necessary to enter into, deliver and perform its obligations under this Work Order.
- (b) Sub-Contractor has obtained all permits, approvals and Licenses required under Applicable Laws, if any, necessary to give effect to this Work Order. This Work Order constitutes a legal, valid and binding agreement/ obligation of Sub-Contractor, enforceable in accordance with its terms and conditions.
- (c) The execution and delivery of this Work Order does not, and the consummation of the transactions contemplated hereby, will not (a) require the consent of any third party, (b) violate or result in a breach under any agreement, statute, regulation, rule, order, judgment, decree or other legal requirement applicable to Sub-Contractor, and (c) constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy act or other applicable law for the protection of debtors or creditors.
- (d) There is no action, suit, proceeding or investigation pending or threatened against the Sub-Contractor which questions the validity of this Work Order or the right of Sub-Contractor to enter into this Work Order.
- (e) Sub-Contractor fully understands that this Work Order is for the provision of services and KPTL has no liability whatsoever for and in connection with the health and safety of any of the personnel and/or workmen provided by Sub-Contractor and Sub-Contractor will ensure and be completely responsible for maintaining safety and protection of all such personnel and/or workmen. During the term of this Work Order, Sub-Contractor shall take suitable insurance cover for its personnel and/or workmen and KPTL shall in no way be liable to pay any compensation arising out of any claim on account of litigation, injury or death etc. to such personnel and/or workmen.
- (f) Sub-Contractor hereby agrees to indemnify, defend and hold the KPTL harmless from and against all liabilities, obligations, losses, expenses, costs, claims and damages asserted against, imposed upon or incurred by the KPTL by reason of or resulting from any breach or inaccuracy of any representation, warranty or covenant of Sub-Contractor set forth in this Work Order or any other breach of this Contract by Sub-Contractor. The indemnification rights of the KPTL under this clause is independent of, and in addition to, such rights and remedies as KPTL may have at law or in equity or otherwise, including the right to seek specific performance, rescission, restitution or other injunctive relief, none of which rights or remedies shall be affected or diminished thereby.

19. Liquidated Damages:

If the Sub-Contractor fails to complete the works within the specified time, Sub-Contractor is liable to pay liquidated damages computed @ 0.2% per week of the Sub-Contract Price. The aggregate amount of such liquidated damages shall in no event exceed 5% of the Sub-Contract price. The Liquidated damages agreed as above is a genuine pre-estimate of damage to be suffered by KPTL in the event of delays caused by the sub-contractor.

20. Guarantee /Warranty And Defect Liability Period:

The Sub-contractor shall strictly follow the Specifications, good engineering and construction practices to carry out the Works. The sub-contractor warrants that the construction material and workmanship shall be free from defects for a period of 6 (Six) months commencing on issuance of completion certificate by the Employer. In the event the sub-contractor fails to remove the defects within the time specified by the Employer /KPTL, then KPTL may proceed to remove such defects at the risk and cost of the sub-contractor and recover the amount from the bank guarantees or other dues of the sub-contractor.

21. Risk Purchase:

In the event of failure of the sub-contractor to execute the order as per terms and conditions herein stipulated, a notice shall be given by KPTL to improve the progress and/or increase resources or remedy any breach. If no corrective action is taken, within the time period stipulated in the said notice, by the Sub-Contractor, KPTL reserves the right to terminate the Work order in part or full and may get such works executed at the risk and cost of the Sub-Contractor. The Sub-contractor shall have no claims whatsoever against KPTL for idling/delays etc. unless specified otherwise in this Work Order. It is also agreed that the sub-contract can be assigned to the Employer in the event of termination of the main Contract by the Employer.

22. Force Majeure:

The following shall constitute Force Majeure:

- a) Acts of God, and other causes such as strikes, lockout or other concerted action of workmen, war, sabotage, riots, civil commotion, police

action, revolution, flood, fire, earthquake and epidemic or any other event(s) beyond the control of any Party.

b) If Subcontractor suffers delay in the due execution of the contractual obligations due to delays caused by force majeure as defined above, the agreed time of completion of the work covered by this contract and of the obligations of the Sub-Contractor shall be extended as may be determined by KPTL, provided, that on the occurrence of any such contingency, the Sub-Contractor immediately reports to KPTL in writing, the cause of delay with requisite documentary evidence and also the remedial steps being taken and the expected period of interruption.

c) Force majeure conditions prevailing at the works of the sub-contractor(s)/vendors shall not be recognized by KPTL on any account and it shall be upto the Sub-Contractor to make necessary alternative arrangement to execute the Contract Works within the time for completion.

d) The decision of KPTL whether there is a Force Majeure condition or not and whether extension of time shall be granted or not shall be final. KPTL shall not be liable for delays in performing its obligations resulting from any force majeure event as referred above. No increase in price shall be payable due to force majeure condition. However, any benefit of price fall shall be passed on to KPTL.

23. Confidentiality:

All information, systems, procedures or other intellectual property such as patents, trademarks, copyrights acquired by you from KPTL shall be treated as confidential by you and shall not be used otherwise than for the purpose of this contract without the prior written consent of KPTL.

You hereby undertake that you and/or any of your representatives, director(s) or employee(s) of or its affiliate shall not, without limit of time, divulge or communicate to any third party or use for your own purposes any information about the affairs of the business/projects of KPTL except as may be necessary for you to perform its obligations under this contract or as may be required by law, any regulatory authority or the rules of any relevant stock exchange within or outside India and except such information as may have come into the public domain otherwise than by a breach of this undertaking or with the prior written approval of KPTL. This clause shall survive any termination or any legal invalidity of this contract.

24. Termination/ Cancellation

(a) KPTL shall have a right to terminate this Work Order without assigning any reason at any time.

(b) KPTL shall be entitled to terminate the Work Order, with immediate effect, without giving any notice, if:

(i) Sub-Contractor is in breach of its obligations under this Work Order and, in the case of such breaches capable of being remedied, fails to remedy that breach within fifteen days of receiving notice of such breach from KPTL (such notice to specify that it is given under this Clause); or

(ii) Sub-Contractor or its personnel/representative/affiliate takes any action which leads to or which has the potential to adversely affect the reputation or goodwill of KPTL, its affiliates, associates, promoters, directors and key personnel;

(iii) Sub-Contractor is adjudicated as bankrupt, or voluntary or involuntary petition has been filed by or against Sub-Contractor, or dissolution is commenced by or against Sub-Contractor.

(iv) Sub-Contractor fails to obtain, renew or maintain any license, registration, or approval required by law in connection with the execution of the obligations under this Work Order, or if any such license, approval or registration shall be revoked, suspended, terminated, or shall otherwise expire.

(v) if Sub-Contractor violates any Applicable Law or regulation.

(vi) if Sub-Contractor assigns this Work Order without prior written consent of KPTL.

(vii) Sub-Contractor gives or offers to give (directly or indirectly) to any person any bribe, gift, Gratuity, commission or other thing of value, as an inducement or reward:

i. For doing or forbearing to do any action in relation to the Work Order. or

ii. For showing or forbearing to show favor or disfavor to any person in Relation to the Work Order.

OR

if any of the Sub-Contractor's Personnel, agents or Sub suppliers gives or offers to give (directly or indirectly) to any person any such inducement or reward as is described in this sub-paragraph (h). However, lawful inducements and rewards to Supplier's Personnel shall not entitle termination.

© Termination of this Work Order shall not affect the rights, liabilities and obligations accrued before the termination of this Work Order including, without limitation, (i) liability for losses or damages suffered by KPTL owing to breach of this Work by Sub-Contractor, and (ii) obligation of confidentiality as specified in this Work Order.

25. Indemnity

Sub-Contractor shall indemnify, defend and hold harmless KPTL, its affiliates, associates, promoters, directors and key personnel from and against any and all claims, losses, damages and liability (criminal or civil) which may be incurred or suffered by any of them and which may arise out of or result from

(a) any breach of any representation, warranty, covenant or agreed of the Sub-Contractor contained in this Work Order including, without limitation, any and all actions, suits, proceedings, claims, demands, assessments, judgments, costs and expenses, legal fees and expenses incurred in enforcing this Indemnity.

(b) Any conduct by the Sub-Contractor or its employees, sub-agents, servants, canvassers, clerks or delegates as a result of which in whole or in part KPTL is made party to, or otherwise incurs any loss pursuant to an action suit claim or proceeding arising out of or relating to such conduct; or

(c) Any contravention of laws relating to any action or proceeding taken against the agent in connection with any such contravention or alleged contravention by the Sub-Contractor;

(d) Negligence of the Sub-Contractor, including through any claim made by the third parties, because of any act or omission on the part of

the Sub-Contractor its employees, sub-agents, servants, canvassers, clerks or delegates etc.

26. Exclusions

The sub-contractor has clearly understood that the terms and conditions herein contained, has been negotiated by and entered into on behalf of the Company and the sub-contractor understands and accepts that the Chairman of the Company, the Managing Director of the Company, and/or any Director(s) of the Company has no part to play in the negotiations and execution of these presents and accordingly is not liable at all in contract, tort or crime in respect of this Work Order or any acts pertaining thereto including prior to its execution. The sub-contractor accordingly undertakes that under no circumstances shall he/it sue and/or prosecute the Chairman of the Company, the Managing Director of the Company, and/or any Director(s) of the Company in respect of the breach of any terms and conditions herein or in respect of any acts, deeds or statements that preceded this Sub-Contract and pertaining to it.

27. Cross Fall Breach And Set Off

The sub-contractor shall be bound by the terms of this Work Order as also any and all other Work Orders / Agreements / Contracts with the Company. The breach or default by the sub-contractor under any of the Work Orders / Agreements / Contracts shall be a default under all the Work Orders/ Agreements/ Contracts and the Company shall have the right to exercise all rights that it may be entitled to in the event of breach or default by the sub-contractor under any and all the Work Orders / Agreements / Contracts.

The sub-contractor further agrees and confirms that, the Company shall at all times have the right to deduct or adjust or set off all or any monies from any due (s) payable to the sub-contractor under this Work Order / Subcontract and/or under any other Work Order(s) or Agreement(s) with the sub-contractor or any of the account of the sub-contractor or any of the Bank Guarantees (i.e. Performance or Advance or Retention or Security Deposit) of the sub-contractor.

28. Governing Laws & Jurisdiction:

The Work Order shall be governed by the Laws of India and courts in Delhi shall have exclusive jurisdiction over all matters arising out of or relating to this Work Order. Notwithstanding the place where the Work Order is signed or where the work under the Work Order is to be executed, it is mutually understood and agreed by and between the Parties hereto, that this Work Order shall be deemed to have been entered into by the Parties concerned in Delhi.

29. Amendments

This Work Order may be modified only by a written instrument duly executed by both of us. All amendments and other modification hereof shall be in writing and shall be signed by both of us.

30. Business Ethics

Buyer requires that the Seller, including any person acting on their behalf, observes highest standard of ethics during the procurement and execution of the Purchase Order. In pursuance of this policy, Buyer shall be within their right to terminate this contract, if it determines that the Seller had engaged in corrupt or fraudulent practices.

31. Anti Bribery And Anti Corruption (ABAC) Clause

The Sub-contractor acknowledges that KPTL expects the Sub-contractor to conduct business ethically and lawfully.

I. In consideration of KPTL entering into this Agreement, the Sub-contractor shall:

- a. comply with the applicable laws relating to anti-bribery and anti-corruption and will not take any action or fail to take any action that would cause KPTL or any of its affiliates or its customers/clients to fail to comply with any applicable anti- corruption legislation;
- b. maintain in place its own policies and procedures to ensure compliance with the provisions of this Schedule and will enforce them wherever applicable;
- c. not offer or give gratuities in the form of entertainment, gifts or otherwise, or kickbacks, by itself or through its directors, executives, officers or other employees (whether permanent, fixed term or temporary), consultants, or contractors to any employee of KPTL, or any employee of the Owner, or any person thereto, for securing a favorable treatment from them;
- d. not take any actions in furtherance of an offer, payment, promise to pay, or authorization of the payment or giving of money, or anything else of value, to any government officials/ entities or to any non-government official / entity for the purposes of obtaining or retaining business, an advantage in the conduct of business or securing any improper advantage.
- e. promptly report through an email to the local compliance team or to the single point of contact at KPTL any request, or demand for any undue financial or other advantage of any kind received by it or its executive in connection with the performance of this Agreement;
- f. immediately notify KPTL in writing, if any public official or employee of the Owner, becomes an officer or employee of the Sub-Contractor, or acquires a direct or indirect shareholding interest in the Sub-Contractor.
- g. The Sub-contractor warrants and represents that as of the Effective Date of this Agreement there are no public officials who are officers, employees or direct or indirect owners of the Sub-Contractor; permit KPTL, its authorized representative, including third party auditors to inspect the accounting books and records relevant to the Agreement.

II. If the Project is funded by one of more funding bank or institution (the "Bank"), the Bank's anticorruption policy (as amended from time to time) shall apply to all suppliers, contractors and Sub-Contractors under Bank-financed contracts, and to observe the highest standard of ethics during the procurement and execution of such contracts. The Sub-contractor and their sub Sub-Contractors, vendors, suppliers shall comply with such policies of the Bank and permit KPTL, KPTL's representative, Bank or its representative to inspect the accounts and

records and conduct audit relating to the performance of the Agreement.

III. Failure to comply with the above provisions shall constitute material breach of the Agreement. KPTL reserves the right to terminate the Agreement with immediate effect without any notice or cure period in such an event.

32. Acceptance Of Contract

This Work Order along with its enclosures is being sent to you in duplicate. You are requested to return one (1) copy of the same duly stamped and signed by your authorized signatory on each and every page as a token of acceptance and send it back to us within 3 days of receipt. In case we do not receive your clear refusal within this period it will be deemed as accepted by you.